

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDITHA JENNINGS,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOHN TOSCANO OF
THE NEW YORK CITY POLICE DEPARTMENT, SHLD. No.
020021, 49th PRECINCT, (NYPD) JOHN DOE (1-6).
BEING UNKNOWN MEMBERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.
-----X

Index No.:

SUMMONS

Date Filed: 7/26/13

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York), and in case of your failure appear or answer, judgment will be taken against you by default for the the relief demanded in the complaint.

The basis of venue is the county of the commission of the acts complained of herein, and the residence of Plaintiff, 1022 East 211 Street, Ground Floor, Bronx, New York 10469.

Dated: Yonkers, New York
7/26/2013

Ian Belinfanti, Esq.

By Ian Belinfanti

Attorney for Plaintiff

79-81 Main Street, #848

Yonkers, New York 10702

Tel.: (646) 397-1485

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDITHA JENNINGS,

Index No.:

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, JOHN TOSCANO OF
THE NEW YORK CITY POLICE DEPARTMENT, SHLD.
No. 020021, 49th PRECINCT, (NYPD), JOHN DOE (1-6)
BEING UNKNOWN MEMBERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Date Filed: 7/26/13

Defendants.

-----X

Plaintiff, Editha Jennings, by and through her attorney, Ian Belinfanti,
complains of Defendants as follows:

FACTUAL ALLEGATIONS

1. My name is Editha Jennings.
2. I am a retired senior citizen who at the time of this arrest, live d quietly at my home.
3. At all times complained of herein, I resided at 1022 East 211th Street, Ground Floor, Bronx, New York, 10469, a three family house recorded as such on the on the official records of the City of New York, which are available to the public through the ACRIS system.
4. The dwelling contained three apartments, a ground floor occupied by me, a first floor and a second floor, each occupied by individual families.
5. On the afternoon of 4/29/2012, while engaged in domestic chores wiyhin my residence, I was alerted to an incident by my granddaughter in which the police on or nearby the premises of the dwelling, had accosted a person.

6. Upon inquiry, I was made to understand by my granddaughter that her father, who live on the second or top floor of the building, was was being arrested by police persons.

7. I then hurried outside my apartment into the driveway of my house where I observed a number of NYPD police officers, male and female, milling about and with a person in a police vehicle.

8. I recognized the person to be my son.

9. I was asked by some police who lived in the house.

10. I responded that the house was a three -family house and that there were three individual households at that address and several people lived there, including my son who lived on the top floor, a tenant resided on the middle floor and that I lived on the ground floor.

11. Some of the police officers kept repeating that it was a one family house, despite my protestations to the contrary and the obvious mailboxes with different names, which were quite noticeable.

12. After I had answered the questions and with no further interaction with the police at that point, I decided after about fifteen minutes (15) to go inside my home to finish my chores.

13. At that point, a NYPD police officer blocked my re-entry into my apartment and I was told that I could not enter the apartment.

14. After waiting approximately another half an hour, a vehicle arrived with a Paper which someone, I believed to be an NYPD policeman, waved about.

15. The NYPD officers proceeded to break-down my front door and enter my apartment.

16. The NYPD police officers searched my apartment.

17. After approximately another 30 mins, when they were finished, I was told that I had to accompany the police officers, despite the fact that I was dressed in my housecoat.

18. I responded that I couldn't leave my house in that disheveled state.

19. I was escorted into my home by 2 female NYPD officers who watched me while I dressed.

20. Upon completing my wardrobe, I was handcuffed by one of the female police officers and who also remarked that the handcuffs were being applied "for giving them a hard time", which I thought odd because I had not had much interaction with them, other than answering their questions about my house, and my initial inquiry about what was happening?

21. I was then transported to the Baychester Avenue/ Pelham precinct.

22. There I was put in a "cage".

23. I asked why was I being arrested, and if I was being arrested, why was I not being read my Miranda rights?

24. An officer responded that they (the Police) were not yet finished with me!

25. After several hours in the cage, I was fingerprinted and photographed, and returned to the "cage".

26. After some more time in the cage, I was taken out, given a piece of paper and

released, at about 10 p.m.

27. I was never advised as to the cause of my arrest and detention.

28. I was never given any Miranda warnings and I committed no offense that would have given the NYPD and probable cause either for the proper execution of either a search warrant for my apartment, or an arrest warrant for my person.

29. Upon leaving the precinct and perusing the paper I was given, I observed that it was a desk appearance ticket for a criminal prosecution, requiring my appearance.

30. Despite the fact that the police knew that I was not the subject of any information in which a search warrant could have been truthfully secured, and the fact that it was improperly drawn, there being three individual households at 1022 East 211th Street, Bronx, New York 10469, I was subject to criminal prosecution even though I have never had any reason to be so prosecuted.

31. I have not at any time had or been found to have any illegal items as listed in my criminal prosecution.

32. Nor were any items with which I was charged with possession found in the illegal search of my home.

33. I was charged with the following:

- | | | |
|-----------|-------------------------|--|
| i). (M) | P.L. 265.01(1) | Criminal Possession of a Weapon 4 |
| ii). (M) | A.C. 10-131(b) | Firearms |
| Iii). (M) | P.L. 270.00 (2) (a) (i) | Unlawfully dealing with fireworks |
| Iv). (M) | A.C. 10-131 (g) (1) | Unlawful Sale, Possession, or use of an Imitation Pistol |
| V). (M) | A.C. 10-131-(i) (3) | Possession of Ammunition 2 CTS |
| Vi). (V) | P.L. 221.05 | Unlawful Possession of Marijuana |
| Vii). | P.L. 270.00 (2) (b) (i) | Unlawfully dealing with fireworks. |

34. I was arraigned on 10/24/2012, where I was released on my own recognizance.

35. My prosecution in Bronx Criminal Court, 2012BX060397, after two appearances, was dismissed on 1/31/13.

36. I timely filed a Notice of Claim with the City of New York, and assigned by the City of New York as Claim No; 2012PI023165.

JURISDICTION AND VENUE

37. Pursuant to 42 USC 1983 , The New York Constitution including article 1, 12, et al., The New York City New York Case law New York Statutes, New York Civ Pro Law, and New York Common Law.

PARTIES

38. Plaintiff:

1. Editha Jennings.

39. Defendants:

1. The City of New York.
2. The NYPD employee and employee, John Toscano, arresting officer.
3. Unknown NYPD John Does (1-6), but known to be additional officers of the NYPD also in or at the scene and participating in the arrest of Plaintiff, specifically, at least two female members of the NYPD.

FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR DEPRIVATION OF CIVIL RIGHTS UNDER UNITED STATES LAW 42 USC § 1983

40. Plaintiff re-alleges and incorporates in this cause of action, each and every matter stated in paragraphs 1-36.

41. The City of New York an incorporated City under the laws of the State of New York.

42. The City has various departments, including the City of New York Police Department, hereinafter "NYPD".

43. The NYPD employs persons in the capacity of policemen/policewomen, who, are employees of the City of New York.

44. Defendant police officer Toscano, by arresting plaintiff, who was not the subject of any criminal investigation, nor the subject of a lawfully issued warrant upon probable cause, deprived plaintiff of hers rights under 42 USC 1983.

45. Defendant police officers entered upon the premises of Plaintiff, unlawfully, since plaintiff committed no crime, nor was plaintiff a suspect in any criminal enterprise.

46. Additionally, Defendant police officers were aware, were made aware, and should have been aware, that the house was publicly listed as a three family house, that Plaintiff lived on the ground floor, and that plaintiff was not involved in any unlawful activity.

47. Further, Defendant police officers, intentionally ignored information that plaintiff had a separate residence from any other party, and unlawfully, arrested, imprisoned charged plaintiff with crimes that they knew plaintiff was not involved with.

48. The police officers demonstrated animus toward plaintiff when one police officer who handcuffed plaintiff stated that she was being handcuffed 'For "giving

them a hard time".

**FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR DEPRIVATION OF CIVIL RIGHTS UNDER UNITED STATES LAW 42
USC § 1985 (3) - Deprivation of Rights or Privileges by Two or More
Persons**

49. Plaintiff re-alleges and incorporates in this cause of action, each and every matter stated in paragraphs 1-48.

50. Defendant police officers, at least six, and as many as eight or more, acted jointly and in concert, did in fact deprive Plaintiff of her rights under 42 USC 1985(3) when she was summarily arrested "for giving them a hard time", had committed no crime, and for which the police officers had no reasonable suspicion that a crime had been committed by Plaintiff, nor did they have any probable cause to arrest Plaintiff.

51. Defendants unlawfully searched plaintiff's dwelling and found no evidence of crime.

52. Defendant officers, persisted, in their unlawful behavior by denying Plaintiff freedom of movement in her own home, arrested Plaintiff, incarcerated plaintiff, and in concert charged plaintiff with crimes they knew or had no reason to believe she had committed.

**FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR
DEPRIVATION OF CIVIL RIGHTS UNDER NEW YORK CONSTITUTION
ARTICLES 1, § 1.**

No member of this state shall be disfranchised, or deprived of any of the rights or privileges secured to any citizen thereof, unless by the law of the land,

53. Plaintiff re-alleges and incorporates in this cause of action, each and every matter stated in paragraphs 1-52.

54. Defendants deprived Plaintiff of her right to be free of unlawful search and seizure and her right to be secure Defendants deprived Plaintiff of her right to be free of unlawful search and seizure and her right to be secure in her person by arresting plaintiff in her home with lawful, probable cause, or upon a warrant sworn to properly with probable cause.

FOR A FOURTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR DEPRIVATION OF CIVIL RIGHTS UNDER NEW YORK CONSTITUTION, ARTICLES 1, § 12.

Art 1, § 12. The right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

55. Plaintiff re-alleges and incorporates in this cause of action, each and every matter stated in paragraphs 1-52.

56. Defendants deprived Plaintiff of her right to be free of unlawful search and seizure and her right to be secure Defendants deprived Plaintiff of her right to be free of unlawful search and seizure and her right to be secure in her person by arresting plaintiff in her home with lawful, probable cause, or upon a warrant sworn to properly with probable cause.

These actions thereby damaged plaintiff in an amount to be determined by the court.

FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR FALSE ARREST UNDER NEW YORK LAW.

57. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A SIXTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR FALSE IMPRISONMENT UNDER NEW YORK LAW.

58. Plaintiff re-alleges and incorporates into this cause of action, each and every

paragraph numbered 1-52.

FOR A SIXTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR FALSE IMPRISONMENT UNDER NEW YORK LAW.

59. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR A SEVENTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR MALICIOUS PROSECUTION UNDER NEW YORK LAW.

60. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR AN EIGHTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR ASSAULT UNDER NEW YORK LAW.

61. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR A NINTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR BATTERY UNDER NEW YORK LAW.

62. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR A TENTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS UNDER NEW YORK LAW.

63. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR AN ELEVENTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS UNDER NEW YORK LAW.

64. Plaintiff re-alleges and incorporates into this cause of action, each aand every paragraph numbered 1-52.

FOR A TWELFTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR FALSE IMPRISONMENT UNDER NEW YORK LAW

65. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A THIRTEENTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR FALSE ARREST UNDER NEW YORK LAW

66. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A FOURTEENTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR MALICIOUS PROSECUTION UNDER NEW YORK LAW

67. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A FIFTEENTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR ASSAULT UNDER NEW YORK LAW

68. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A SIXTEENTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR BATTERY UNDER NEW YORK LAW

69. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

FOR A SEVENTEENTH CAUSE OF ACTION AGAINST JOHN TOSCANO FOR DEPRIVATION OF CIVIL RIGHTS

70. Plaintiff re-alleges and incorporates into this cause of action, each and every paragraph numbered 1-52.

WHEREFORE, upon the foregoing complaint, and the damages suffered by Plaintiff as a consequence of the defendants' acts, Plaintiff respectfully demands judgment against Defendants in an amount to be determined by the court, and

further, that the Court award attorney fees, pursuant to 42 USC 1988 (b), and further that the court order any further and other relief that to the Court may seem just.

Dated: Yonkers, New York
7/26/2013

Ian Belinfanti
Ian Belinfanti, Esq.
Attorney for Plaintiff
79-81 Main Street, # ~~418~~ x 848
Yonkers, New York 10702
Tel.: (646) 397-1485

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDITHA JENNINGS,

Plaintiff,

-against-

Index No.:

22 NYCRR § 130-1.1-a
CERTIFICATION

THE CITY OF NEW YORK, JOHN TOSCANO OF
THE NEW YORK CITY POLICE DEPARTMENT, SHLD. No.
020021, 49th PRECINCT, (NYPD) JOHN DOE (1-6).
BEING UNKNOWN MEMBERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.

Date Filed:

-----X

I hereby certify pursuant to 22 NYCRR § 130-1.1-a that, to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the papers listed below or the contentions therein are not frivolous as defined in 22 NYCRR § 130-1.1(c):

Dated: Yonkers, New York
9/6/2013



Ian Belinfanti, Esq.
Attorney for Plaintiff
79-81 Main Street, # 848
Yonkers, New York 10702
Tel.: (646) 397-1485

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDITHA JENNINGS,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOHN TOSCANO OF
THE NEW YORK CITY POLICE DEPARTMENT, SHLD. No.
020021, 49th PRECINCT, (NYPD) JOHN DOE (1-6).
BEING UNKNOWN MEMBERS OF THE NEW YORK CITY
POLICE DEPARTMENT,

Defendants.

Index No.:

ATTORNEY
VERIFICATION

Date Filed:

-----X
ATTORNEY VERIFICATION

The pleading is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true.

The grounds of my belief are privileged conversations with Plaintiff and public documents as to all matters not stated upon my own knowledge.

This verification is being made by me because my offices are not located in the county in which Plaintiff resides.

Dated: Yonkers, New York

9/6/2013


Ian Belinfanti, Esq.
Attorney for Plaintiff